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JUDGMENT SHEET

LAHORE HIGH COURT LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.60613 of 2025

Muhammad Imran Irshad

Versus

Government of Punjab through Chief Secretary and others

Petitioner by:- Mr. Muhammad Khan Bhatti, Advocate.
Respondents by: Mr. Mohammad Osman Khan, Assistant
Advocate General, Punjab and Mr. Ijaz
Ahmad Shakir, Advocate/Legal Advisor.

Date of hearing: - **18.02.2026**

JUDGMENT

RAHEEL KAMRAN, J.: The petitioner has invoked the constitutional jurisdiction of this Court under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 to assail order dated 09.10.2025 passed by respondent No.3/Secretary Local Government Board, Lahore, whereby he has been transferred from the post of Building Inspector, Wagha Zone, Metropolitan Corporation Lahore and posted as Building Inspector, Allama Iqbal Zone, Metropolitan Corporation, Lahore.

2. Learned counsel for the petitioner contends that the petitioner was posted at Wagha Zone, Metropolitan Corporation Lahore on 01.10.2025 and within eight days, through the impugned order dated 09.10.2025, he has been transferred without assigning any reason. It is argued that such hasty transfer is arbitrary, violative of the principle of security of tenure and contrary to the law laid down by this Court in the

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cases of “Ashfaq Ahmad v. Govt. of Punjab etc.” available on the website of this Court as **2023 LHC 2668** and “Muhammad Shoaib Iqbal v. Government of the Punjab and others” (**2025 CLC 1233**), wherein protection of tenure under Section 186 of the Punjab Local Government Act, 2022 (hereinafter, “the Act of 2022”) was recognized and enforced. Learned counsel submits that the petitioner’s case is squarely covered by the said judgments and the impugned order is liable to be set aside.

3. Conversely, learned Assistant Advocate General, Punjab assisted by the learned Legal Advisor for the respondents, while opposing the petition submits that the reliance placed by the petitioner upon the aforesaid judgments is misconceived. It is contended that the Act of 2022 under which protection of tenure was provided in Section 186, stands repealed by the Punjab Local Government Act, 2025 (hereinafter, “the Act of 2025”) and the newly promulgated law does not contain any provision analogous to Section 186 granting statutory security of tenure. He further submits that the petitioner has merely been adjusted within the same Metropolitan Corporation on administrative grounds and no legal right of the petitioner has been infringed. It is argued that transfer is an incidence of service and falls within the exclusive domain of the competent authority.

4. Heard. Record perused.

5. The principal question for determination in the instant case is whether the petitioner can claim protection of tenure on the strength of Section 186 of the Act of 2022, despite the fact that the said enactment has since been repealed and replaced by the Act of 2025. There is no cavil with the proposition that under Section 186 of the repealed Act of 2022, security of tenure for a period of not less than two years was provided to Chief Officers and such other officers of the local governments as may be specified by the Secretary. In the cases of *Ashfaq Ahmad* and *Muhammad Shoaib Iqbal* (*supra*), this Court interpreted the said provision and held that ordinary tenure so prescribed

could not be curtailed except for compelling reasons to be recorded in writing. Those judgments were rendered in the context of the statutory regime then in force. However, it is equally well-settled that once a statute is repealed and substituted by a subsequent enactment, rights and liabilities of the parties are to be examined in the light of the law presently holding the field, unless any accrued or vested right is protected by a saving clause. Learned counsel for the petitioner has not been able to point out any provision in the Act of 2025, which preserves or continues the protection of tenure earlier available under Section 186 of the repealed Act of 2022. Admittedly, the new enactment does not contain any provision granting a fixed or minimum tenure to officers of the local governments. In absence of any statutory protection under the prevailing law, the petitioner cannot claim, as a matter of right, to remain posted at a particular place for any specified duration. It is trite law that transfer is an incidence of service and no civil servant or government employee has a vested right to remain posted at a station of his choice.

6. Judicial review in transfer matters is confined to cases where the order is shown to be without lawful authority, tainted with *mala fide*, passed on extraneous considerations or in violation of any statutory provision. In the present case, the impugned order reflects that the petitioner has been transferred within the same Metropolitan Corporation from one zone to another. No material has been placed on record to suggest that the order suffers from *mala fide* or has been passed for any collateral purpose. The mere fact that the petitioner was transferred within a short span of time, by itself, does not render the order illegal, particularly when no statutory tenure protection exists under the law currently in force. The judgments relied upon by the learned counsel for the petitioner were rendered in the backdrop of the Act of 2022, which expressly provided security of tenure. Since the said enactment stands repealed and the new Act of 2025 does not provide any analogous protection, the *ratio* of the aforesaid judgments is distinguishable and

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does not advance the case of the petitioner under the present statutory framework.

7. For the foregoing reasons, this Court finds no illegality or jurisdictional defect in the impugned transfer order dated 09.10.2025 warranting interference in exercise of constitutional jurisdiction. Consequently, this writ petition is dismissed.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

*Azhar**